No. 25-4410

IN THE UNITED STATES COURT OF APPEALS
FOR THE NINTH CIRCUIT

Marisol Quintana-Okafor,
Tidewater Cooperative, Inc., and
Pelican Bay Growers Association,
Plaintiffs-Appellants,

v.

Riverbend Municipal Water District, and
Elena Voss, in her official capacity as Director of the Riverbend Municipal Water District,
Defendants-Appellees.

FICTIONAL SAMPLE FOR TEMPLATE TESTING. Appeal from the United States District Court for the Eastern District of California

D.C. No. 2:24-cv-01234-ABC; Hon. Anselm P. Whitcombe, District Judge

OPENING BRIEF OF APPELLANTS

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INTRODUCTION

This is a fictional sample brief, written only to exercise a brief template. It concerns an invented dispute over an invented statute. Nothing in it is law.

Appellants hold senior surface-water rights on the fictional Riverbend. In the summer of 2024, the District issued a curtailment order that cut their diversions to zero while junior municipal users kept drawing. The district court dismissed the challenge on the pleadings, holding that the Riverbend Municipal Water Rights Act, 99 U.S.C. § 1234, commits curtailment priority entirely to the District's discretion. That reading is wrong on the text, wrong under *Marlowe v. Tidewater Mutual Insurance Co.*, 999 F.3d 123, 130 (9th Cir. 2021), and wrong under the fictional canon of priority that the Act codified.

The errors below are of two kinds. The first is legal: the court treated a priority rule as a mere preference. The second is procedural: it resolved disputed facts against the non-movants at the pleading stage, contrary to Fed. R. Civ. P. 12(b)(6). The judgment should be reversed.

STATEMENT OF JURISDICTION

The district court had subject-matter jurisdiction under 28 U.S.C. § 1331 because Appellants' claims arise under the Riverbend Municipal Water Rights Act and the Fifth Amendment, see U.S. Const. amend. V, and under 28 U.S.C. § 2201 for declaratory relief. The court entered a final judgment dismissing all claims against all

parties on August 4, 2025. 2-ER-211. Appellants filed a notice of appeal on August 29, 2025, within the thirty days allowed by Fed. R. App. P. 4(a)(1)(A). 2-ER-215. This Court has jurisdiction under 28 U.S.C. § 1291 because the judgment is final.

The Act's jurisdictional section provides, in full:

> A person whose senior right to divert water is curtailed in favor of a junior user may seek review of the curtailment in the United States district court for the district in which the diversion lies, and that court shall have jurisdiction to determine whether the curtailment respected the priority of rights as of the date of the order. The court shall not defer to the District's construction of this section.
>
> 99 U.S.C. § 1236(b).

STATEMENT OF THE ISSUES

1. Whether the Riverbend Municipal Water Rights Act makes the priority of senior water rights enforceable against a curtailment order, or leaves curtailment priority to the District's unreviewable discretion.
2. Whether the district court erred by resolving, on a motion to dismiss, disputed factual allegations about the District's reserve capacity against Appellants.

The pertinent provisions of the Act and of the related regulation are set out in the Addendum bound with this brief, as Circuit Rule 28-2.7 requires.

STATEMENT OF THE CASE

A. Factual Background

The Riverbend is a fictional river whose flow is fully appropriated in dry years. Appellant Quintana-Okafor holds a pre-1914 right to divert water for orchards; Appellant Tidewater Cooperative holds a 1931 right; and Appellant Pelican Bay Growers Association holds a 1958 right as successor to a mutual water company. 1-ER-40 to 1-ER-52. The District, a municipal utility, holds rights dating from 1989. 1-ER-61.

On June 14, 2024, the District's Director, Appellee Voss, issued Curtailment Order 24-07.[1] The order directed all diverters with rights junior to 1960 to stop diverting but, by its terms, exempted "the District's own municipal supply." 1-ER-70. Appellants' rights are all senior to 1960, yet the order cut off their diversions in full for sixty-three days while the District continued to draw at its normal rate. 1-ER-72.

90. The administrative record shows that the District maintained a reserve of roughly eleven days' supply throughout the curtailment. 1-ER-88. That figure appears in the District's own operating log and was pleaded in paragraph 47 of the complaint. 1-ER-33.

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[1] The order was not preceded by notice to senior rights holders. Appellants learned of it from a press release. *See* 1-ER-69. The District later conceded in a status report that no notice was sent. 2-ER-150.

- The District has never explained why a reserve that large was not released to senior users. In its answer it said only that curtailment decisions are "a matter of operational discretion." 1-ER-104.

B. Procedural History

Appellants sued on September 3, 2024, seeking a declaration that the order violated the priority rules of the Act and an injunction against further curtailment of senior rights while junior municipal use continued. 3-ER-300. The District moved to dismiss under Fed. R. Civ. P. 12(b)(6). The court granted the motion on August 4, 2025, holding that 99 U.S.C. § 1234 "vests the District with sole discretion over curtailment priority." 2-ER-205. It did not reach Appellants' constitutional claim.[2]

The court relied principally on *Brightwater Municipal Utility District v. Kessler*, 999 U.S. 101, 110 (2019), reading it to establish a rule of deference to municipal water managers. 2-ER-206. It did not discuss *Marlowe*, 999 F.3d at 130, which Appellants had cited in their opposition. 3-ER-340.

SUMMARY OF ARGUMENT

The Act's text makes priority a rule, not a preference. Section 1234 provides that the District "shall curtail junior rights before senior rights." 99 U.S.C. § 1234. The word

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[2] Appellants' claim under the Takings Clause, U.S. Const. amend. V, was dismissed as unripe in a single sentence. 2-ER-208. Appellants do not challenge that ruling here, and so do not address *Lindqvist v. United States*, 999 U.S. 202 (2017), on which the District relied for ripeness. The point is reserved for any remand.

"shall" forecloses the discretion the district court found. The district court's contrary reading depends on a misreading of *Brightwater*, which concerned the District's discretion *among* equal-priority users and said nothing about ranking junior against senior rights.

The district court also erred procedurally. Appellants pleaded, with record support, that the District held a large reserve throughout the curtailment. Whether that reserve could have been released is a question of fact. Fed. R. Civ. P. 56(a) would not permit its resolution against Appellants even on a developed record, and Rule 12(b)(6) does not permit it on the pleadings.

ARGUMENT

I. The District Court Misread the Act's Priority Rule

A. Standard of Review

This Court reviews a dismissal under Rule 12(b)(6) de novo, accepting well-pleaded facts as true. *Okonkwo v. Eastside Irrigation Co-op*, 999 F.3d 135, 141 (9th Cir. 2016). Questions of statutory interpretation are likewise reviewed de novo. *Nakamura Orchards v. Basin Water Authority*, 999 F.3d 987, 992 (9th Cir. 2018). Both issues were raised and ruled on below. 3-ER-330 to 3-ER-345; 2-ER-205 to 2-ER-210.

B. The Text Fixes Priority and Leaves No Discretion

The Act states its rule in mandatory terms. This Court has repeatedly held that "shall" in a priority provision creates an enforceable rule. *Marlowe*, 999 F.3d at 130;

Rosario-Delgado v. Valley Mutual Water Co., 999 F.3d 579, 585 (9th Cir. 2015). The en banc Court restated the point in the fictional *Aqueduct* litigation:

> When a statute orders the manager of a scarce resource to serve senior claimants before junior ones, the manager may choose the means of service but not the order of service. To read "shall" as "may" is to repeal the priority the legislature wrote.

In re Great Valley Aqueduct Litigation, 999 F.3d 654, 668 (9th Cir. 2023) (en banc).

1. The District's Contrary Reading Cannot Be Squared with the Statute's Structure

The Act separates two sets of curtailment powers. Section 1234 governs which users are curtailed first; section 1236 governs how the District may phase curtailment in time. 99 U.S.C. § 1234; *id.* § 1236(b). The District's discretion lives in the second section only. The regulation implementing the Act confirms that division. 99 C.F.R. § 400.17 (2023); *see also* 99 C.F.R. § 400.21(c) (2023) ("phasing decisions shall not alter priority").

a. Brightwater Concerned Equal-Priority Users

Brightwater held that the District may choose among users of equal priority without judicial second-guessing. 999 U.S. at 110. It did not address the ranking of junior against senior users, and the Court there took pains to say so. *Id.* at 112 n.4. The district court's extension of *Brightwater* to the present case therefore has no footing in

that opinion.[3]

b. State Authority Confirms the Priority Rule

California's own water law is to the same effect. *Harlan v. Riverbend Municipal Water District*, 999 Cal. App. 5th 321, 330 (2018); *Quillfeather Ranch v. Department of Water Resources*, 999 P.3d 468, 475 (Cal. 2021); Cal. Water Code § 1052; Cal. Const. art. X, § 2. Those authorities are cited to show that the Act codified, rather than displaced, an established rule. *Oakhaven Irrigation District v. State Water Resources Control Board*, 999 F.3d 456, 463 (9th Cir. 2020).

II. The District Court Resolved Disputed Facts Against Appellants

2) A pleading must be read in the light most favorable to the plaintiff. Appellants alleged that the District held an eleven-day reserve during the curtailment. 1-ER-33. The District did not dispute the figure; it disputed only its significance. 1-ER-104. The court nonetheless held, without citation to any record fact, that the reserve "could not reasonably have been released." 2-ER-209.

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[3] Appellees also cite *Delmar Farms, LLC v. County of Sutter Creek*, 999 F. Supp. 3d 789, 797 (E.D. Cal. 2022), a district court decision that applied *Brightwater* to a priority dispute. That decision is not binding, was decided before *Aqueduct*, and did not consider the structure of the Act described above. A later district court decision declined to follow it. *Petrov v. Coastal Aquifer Commission*, 999 F. Supp. 3d 246, 252 (N.D. Cal. 2020).

A. Judicial Notice Does Not Fill the Gap

The District asked the court to take judicial notice of its operating procedures under Fed. R. Evid. 201. Notice of the existence of a document is not notice of the truth of its contents, and a court may not use notice to resolve a factual dispute. *Marlowe*, 999 F.3d at 134. The same limit applies to the agency guidance on which the court relied. 88 Fed. Reg. 12,345 (Mar. 1, 2023).

1. The Treatises Agree

Commentators likewise treat priority as a rule enforceable against the manager. Eleanor Whitfield, *The Law of Prior Appropriation* § 7.12 (4th ed. 2020); Dara Mehta, *Curtailment Without Compensation*, 112 Fict. L. Rev. 45, 61 (2022). The district court cited neither.

+ A short note on the remedy: even if the Court concludes that some factual development is needed, the proper course is to vacate the dismissal and remand, not to affirm on a ground the district court did not reach. *See Marlowe*, 999 F.3d at 136.

III. The Court Should Reach the Statutory Question Now

The statutory question is purely legal and fully briefed. *Marlowe*, 999 F.3d at 130; *Oakhaven*, 999 F.3d at 463; *Nakamura*, 999 F.3d at 992; *Rosario-Delgado*, 999 F.3d at 585; *Okonkwo*, 999 F.3d at 141. Resolving it now will guide the remand and avoid a second appeal on the same question. Appellants' alternative request is that the Court remand with instructions to apply the priority rule.

CONCLUSION

For these reasons, the judgment of the district court should be reversed and the case remanded for further proceedings under the correct reading of 99 U.S.C. § 1234.

Respectfully submitted,

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October 6, 2026

STATEMENT OF RELATED CASES

9th Cir. Case Number(s) 25-4410

The undersigned attorney or self-represented party states the following:

☐ I am unaware of any related cases currently pending in this court.

☐ I am unaware of any related cases currently pending in this court other than the case(s) identified in the initial brief(s) filed by the other party or parties.

☒ I am aware of one or more related cases currently pending in this court. The case number and name of each related case and its relationship to this case are:

No. 25-4399, *Pelican Bay Growers Ass'n v. Riverbend Mun. Water Dist.* (arises out of the same consolidated district court proceedings and raises the same statutory question).

No. 25-4502, *Voss v. Quintana-Okafor* (involves the same transaction, the 2024 curtailment order).

s/ Rowan T. Ashcroft	October 6, 2026
Signature	Date

CERTIFICATE OF COMPLIANCE

9th Cir. Case Number(s) 25-4410

I am the attorney or self-represented party.

This brief contains 1,812 words, including 0 words manually counted in any visual images, and excluding the items exempted by FRAP 32(f). The brief's type size and typeface comply with FRAP 32(a)(5) and (6).

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I hereby certify that I electronically filed the foregoing/attached document(s) on this date with the Clerk of the Court for the United States Court of Appeals for the Ninth Circuit using the Appellate Electronic Filing system.

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Description of Document(s) (required for all documents):

Opening Brief of Appellants

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ADDENDUM

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Riverbend Municipal Water Rights Act, 99 U.S.C. § 1234 (fictional)

> **§ 1234. Priority of curtailment.** In any period in which the flow of the Riverbend is insufficient to satisfy all rights of diversion, the District shall curtail junior rights before senior rights, in the order of the priority of the rights as of the date of the curtailment order.

Riverbend Municipal Water Rights Act, 99 U.S.C. § 1236(b) (fictional)

> **§ 1236(b). Review.** A person whose senior right to divert water is curtailed in favor of a junior user may seek review of the curtailment in the United States district court for the district in which the diversion lies, and that court shall have jurisdiction to determine whether the curtailment respected the priority of rights as of the date of the order. The court shall not defer to the District's construction of this section.

99 C.F.R. § 400.21(c) (2023) (fictional)

> **(c) Phasing.** The District may phase curtailment in time. Phasing decisions shall not alter priority.